



FEDERAL TRADE COMMISSION
PROTECTING AMERICA'S CONSUMERS

For Release

FTC Takes Action Against Evolv Technologies for Deceiving Users About its AI-Powered Security Screening Systems

Proposed settlement would prohibit misrepresentations and allow affected schools to opt out of current contracts for security screening systems

November 26, 2024



Tags: [Consumer Protection](#) | [Bureau of Consumer Protection](#) | [Technology](#) | [Artificial Intelligence](#)

The Federal Trade Commission is taking action against Evolv Technologies over allegations that the company made false claims about the extent to which its AI-powered security screening system can detect weapons and ignore harmless personal items, including in school settings.

In the proposed FTC [settlement order](#), Evolv would be banned from making unsupported claims about its products' ability to detect weapons by using artificial intelligence and would also have to give certain K-12 school customers the option to cancel their contracts, which generally lock customers into multi-year deals.

"The FTC has been clear that claims about technology – including artificial intelligence – need to be backed up, and that is especially important when these claims involve the safety of children," said Samuel Levine, Director of the Bureau of Consumer Protection. "If you make those claims without adequate support, you can expect to hear from the FTC."

The FTC's [complaint](#) alleged that Massachusetts-based Evolv deceptively advertised that its Evolv Express scanners would detect all weapons and made misleading claims that its use of artificial intelligence makes its screening systems more accurate, efficient, and cost-effective than traditional metal detectors.

Evolv's Express AI-powered security scanners are used in thousands of schools and many other venues, such as sports stadiums and hospitals. School systems make up half of its business, with Express scanners located in over 800 schools across 40 states, according to the complaint. In its marketing materials, the company has touted its use of AI, claiming its scanners are a high-tech alternative to traditional metal scanners. In marketing its products to schools, the company claimed its products would help address the problem of guns and other weapons in schools.

The FTC alleged that Evolv misrepresented that its Evolv Express system will detect all weapons; ignore harmless personal items without requiring people to remove them from their pockets or bags; detect weapons more accurately and faster than metal detectors; reduce false alarm rates; and cut labor costs by 70% compared to metal detectors by reducing the need for additional personnel.

In its complaint, the FTC alleged that Evolv's Express scanners

failed in several instances to detect weapons in schools while flagging harmless personal items typically brought to schools, like laptops, binders, and water bottles. For example, Evolv's Express scanners reportedly failed to detect a seven-inch knife brought into a school in October 2022 that was used to stab a student. Afterwards, school officials increased the system's sensitivity settings, prompting a 50% false alarm rate.

To reduce false positive rates, Evolv in 2023 introduced a more sensitive setting for Express users with the goal of detecting more knives. Despite this, Evolv said some knives will be missed, more false alarms will occur, and additional staffing may be required to run the machines. It also advised schools to add conveyor belts and other measures to divert harmless items by hand, which makes the system more like traditional lower-cost metal detectors according to the complaint.

Proposed Settlement Requirements

Under the proposed settlement, Evolv will be required to notify certain K-12 school customers that they can opt to cancel contracts signed between April 1, 2022, to June 30, 2023. In addition, the proposed order also will prohibit Evolv from making any misrepresentations about:

- the ability of its products to detect weapons, ignore harmless personal items, and ignore harmless personal items without requiring visitors to remove any such items from pockets or bags;
- its products' accuracy in detecting weapons and false alarm rates, including in comparison to the use of traditional metal detectors;

- the speed at which visitors can be screened compared to the use of metal detectors;
- labor costs, including comparisons to the use of metal detectors;
- testing, or the results of any testing; and
- any material aspect of its performance, including the use of algorithms, artificial intelligence, or other automated systems or tools.

The settlement with Evolv builds upon FTC's ongoing work to ensure that AI claims are backed up. Earlier this fall, the [agency announced Operation AI Comply](#), with five new actions targeting the deceptive use of or claims around AI. Actions to ensure that AI marketing is truthful both protects consumers and helps ensure real innovators can thrive.

The Commission vote authorizing the staff to file the complaint and stipulated order was 5-0. The FTC filed the complaint and stipulated order in the U.S. District Court for the District of Massachusetts. Commissioner [Andrew Ferguson issued a statement](#) and [Commissioner Melissa Holyoak issued a statement](#).

NOTE: The Commission files a complaint when it has "reason to believe" that the named defendants are violating or are about to violate the law and it appears to the Commission that a proceeding is in the public interest. Stipulated orders have the force of law when approved and signed by the District Court judge.

The lead staff attorneys on this matter are Michael Atleson and Katherine Campbell with the FTC's Bureau of Consumer Protection.